



CHAPTER ix

An Act to confer powers upon the Marine Society and for other purposes.

[6th June 1957.]

WHEREAS in the year seventeen hundred and fifty-six a society was instituted under certain regulations for fitting and placing out men and boys to the sea-service and other charitable purposes which society was commonly called “the Marine Society” :

And whereas in the year seventeen hundred and seventy-two the members of the said society were incorporated by an Act intituled “An Act for Incorporating the Members of a Society commonly called The Marine Society, and their Successors, to be elected as therein is mentioned, and for the better empowering and enabling them to carry on their charitable and useful Designs” with the name of the Marine Society :

12 Geo. 3
c.67

And whereas the powers of the Marine Society with respect to the investing of its funds are inadequate for its needs in the circumstances now prevailing and it is expedient that those powers be amended and extended as by this Act provided :

And whereas the purposes aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen’s most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1.—(1) This Act may be cited as the Marine Society Act 1957.

Short and
collective
titles.

(2) This Act and the Act of 1772 may be cited together as The Marine Society Acts 1772 and 1957.

2. In this Act unless the context otherwise requires—

Interpre-
tation.

“the Act of 1772” means the Act intituled “An Act for Incorporating the Members of a Society, commonly called The Marine Society, and their Successors, to be

“elected as therein is mentioned, and for the better
“impowering and enabling them to carry on their
“charitable and useful Designs” ;

“the committee” means the committee elected in pursuance
of the Act of 1772 to manage the affairs of the Society ;

“the general funds of the Society” means the funds of the
Society the income from which is available for the
general purposes of the Society ;

“the Society” means the Marine Society ;

“the special funds of the Society” means the funds of the
Society the income from which is available for special
purposes.

Powers of
investment.

3.—(1) Any part of the capital or the income of the general
funds or special funds of the Society which is not required for
the time being may be invested by the Society in any of the follow-
ing modes or objects of investment which are for the time being
approved by the investment committee appointed in pursuance
of subsection (4) of this section (which Committee is hereinafter
called “the investment committee”)—

- (a) in any investment from time to time authorised by law for
the investment of trust funds ;
- (b) in the public stocks or funds or government securities of
any part of the British Commonwealth of Nations or of
Her Majesty's dominions or of the territories under Her
protection ;
- (c) in such of the following investments as in the opinion of
the investment committee are generally considered to be
readily marketable and to form a good and safe
security:—

deposit receipts bonds debentures debenture stocks
mortgages or securities guaranteed lien preference
ordinary deferred or common stocks or shares (such
stocks or shares not being subject to any liability for
calls or other payments) of any corporation company
or body whether municipal railway public utility
commercial industrial investment trust mortgage insur-
ance banking or of any other class ;

- (d) in freehold ground-rents well secured in accordance with
the report of a duly qualified valuer which ground-rents
the Society may purchase take receive and hold without
licence in mortmain :

Provided that—

(i) no such investment shall be made whereby a
greater part than three-quarters of the general funds
or three-quarters of any special fund of the Society
immediately after the making thereof shall be

invested in investments other than those from time to time authorised by law for the investment of trust funds ;

(ii) none of the funds of the Society invested in any of the modes or objects specified in paragraphs (a) (b) or (c) of this subsection shall be invested in investments stocks funds or securities which are not quoted on the Stock Exchange London and of which the aggregate market value of the amount issued at the date of such investment is less than seven hundred and fifty thousand pounds or its equivalent at the current rate of exchange.

(2) The Society may retain any investment which was held by the Society immediately before the passing of this Act or which may at any time thereafter become vested in the Society by virtue of any gift or testamentary disposition whenever made though not being investments authorised to be acquired under this Act and may accept and retain or refuse any new shares stock debentures or debenture stock in any company which may be offered to the Society in respect of any investment retained as aforesaid.

(3) The Society may at any time vary the investments of the Society for or into others of any nature hereby authorised.

(4) For the purposes of this section the Committee shall appoint and at all times keep in being a sub-committee to be called "the investment committee" to consist of the treasurer of the Society and two other members of the committee.

4. Sections 17 and 18 of the Act of 1772 are hereby repealed. Repeal.

5. All costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Society out of the funds of the Society. Costs of Act.

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